

STATE OF NEW YORK

3515--B

2025-2026 Regular Sessions

IN ASSEMBLY

January 28, 2025

Introduced by M. of A. BICHOTTE HERMELYN, REYES, PHEFFER AMATO -- read once and referred to the Committee on Education -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to requiring school districts to provide information regarding water safety and swimming certification to certain parents or students upon enrollment; and to amend the public health law, in relation to promoting public awareness of the dangers of fatal and non-fatal drowning

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The education law is amended by adding a new section 926 to
2 read as follows:

3 § 926. Water safety and swimming certification. 1. Beginning with the
4 two thousand twenty-six--two thousand twenty-seven school year, each
5 school district shall provide, to a parent or guardian who initially
6 enrolls their child in the school, information on the important role
7 water safety education courses and swimming lessons play in saving
8 lives. Such information, which shall be provided by the department of
9 health on its public website pursuant to paragraph (t) of subdivision
10 one of section two hundred seven of the public health law, must be
11 provided electronically or in hard copy and must include local options
12 for age-appropriate water safety courses and swimming lessons that
13 result in a certificate indicating successful completion, including
14 courses and lessons offered for free or at a reduced price. To satisfy
15 this requirement, the school district may either: (a) provide a list of
16 options deemed geographically appropriate by the school district, or (b)
17 provide a website address to an online database of options searchable by
18 zip code as approved for such purpose by the department of health pursu-
19 ant to paragraph (t) of subdivision one of section two hundred seven of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 the public health law. If the student is eighteen years of age or older,
2 or is under the age of twenty-one and is enrolling in adult education
3 classes, the information must be provided to the student.

4 2. For the purposes of this subdivision, the term "water safety" shall
5 mean age-appropriate education intended to promote safety in, on, and
6 around bodies of water and reduce the risk of injury, including fatal or
7 non-fatal drowning.

8 § 2. Paragraph (s) of subdivision 1 of section 207 of the public
9 health law, as added by chapter 294 of the laws of 2024, is amended to
10 read as follows:

11 ~~(s)~~ (t) Promoting public awareness of the dangers of fatal and non-
12 fatal drowning, including but not limited to the unique risk factors and
13 exposures associated with infant and early drowning, childhood and teen-
14 age drowning and adult drowning, the disparate risk of drowning in
15 disadvantaged communities identified pursuant to section 75-0111 of the
16 environmental conservation law and with individuals with a mental disa-
17 bility as defined by subdivision three of section 1.03 of the mental
18 hygiene law, and methods to reduce the risks of drowning, including but
19 not limited to water safety instruction, swim lessons, and awareness of
20 water based risks. Such information shall include access to an online
21 database, searchable by zip code, of options for age-appropriate water
22 safety courses and swimming lessons that result in a certificate indi-
23 cating successful completion, including courses and lessons offered for
24 free or at a reduced price.

25 § 3. This act shall take effect July 1, 2026; provided that the amend-
26 ments to subdivision 1 of section 207 of the public health law made by
27 section two of this act shall take effect on the same date and in the
28 same manner as section 1 of chapter 294 of the laws of 2024, takes
29 effect.